contractor furnishes a performance bond, an amendment to that bond which meets the requirements of paragraph (a) will be acceptable in lieu of an additional or separate bond."

FRED J. RUSSELL,
Acting Secretary of the Interior.

JULY 7, 1970.

A new paragraph (d) is added to § 23.9:

§ 23.9 **Performance bond.**

* * * * *

(d) Performance bonds will not be required of Federal, State, or other governmental agencies. Where the exploration or mining is actually performed for such Federal, State, or governmental agencies by a contractor who would have to post a bond under the terms of paragraph (a) of this section if he were the operator, such agencies shall require the contractor to furnish a bond payable to the United States which meets the requirements of paragraph (a) of this section. If, for some other purpose, the contractor furnishes a performance bond, an amendment to that bond which meets the requirements of paragraph (a) of this section will be acceptable in lieu of an additional or separate bond.

[F.R. Doc. 70-8941; Filed, July 13, 1970; 8:48 a.m.]

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4862]

[New Mexico 10703]

NEW MEXICO

Partial Revocation of Executive Order No. 6583

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 6583 of February 3, 1934, withdrawing lands to enable the State of New Mexico to make exchange selections as provided by the Act of June 15, 1926, 44 Stat. 746–748, is hereby revoked so far as it affects the following described land:

NEW MEXICO PRINCIPAL MERIDIAN

T. 15 S., R. 8 W.,
Sec. 20, W½SW¼.

The area described contains 80 acres in Sierra County.

The land is located approximately 4 miles north of the village of Kingston in the west-central portion of Sierra County, adjacent to the east boundary of the Gila National Forest. The terrain is rough and mountainous. Dunn Canyon traverses the southwest corner of the area in a northwest to southeast direction. Vegetal cover consists of fair to poor cover of mixed grasses, scattered scrub juniper, cedar, cholla, yucca, and ocotillo cacti, with scattered scrub pine and oak trees in the drainage area.

2. At 10 a.m. on August 10, 1970, the land shall be opened to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on August 10, 1970, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The land has been and continues to be open to applications and offers under the mineral leasing laws and to location under the U.S. mining laws for metalliferous minerals. It will be open to location for nonmetalliferous minerals at 10 a.m. on August 10, 1970.

Inquiries concerning the land shall be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, N. Mex.

HARRISON LOESCH,
Assistant Secretary of the Interior.

JULY 6, 1970.

[F.R. Doc. 70-8942; Filed, July 13, 1970; 8:49 a.m.]

[Public Land Order 4863]

[New Mexico 11252]

NEW MEXICO

Withdrawal for Navajo Indian Irrigation Project

By virtue of the authority contained in section 3 of the Act of June 17, 1902, 32 Stat. 388, as amended and supplemented, 43 U.S.C. section 416 (1964), it is ordered as follows:

Subject to valid existing rights, the following described public land, which is under the jurisdiction of the Secretary of the Interior, is hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, and reserved for the Navajo Indian Irrigation Project:

NEW MEXICO PRINCIPAL MERIDIAN

T. 29 N., R. 9 W.,
Sec. 36, SE¼SE¼.

The area described aggregates 40 acres in San Juan County.

The rights to all oil and gas, and other hydrocarbon substances, helium and carbon dioxide belong to the State of New Mexico.

HARRISON LOESCH,
Assistant Secretary of the Interior.

JULY 6, 1970.

[F.R. Doc. 70-8943; Filed, July 13, 1970; 8:49 a.m.]

Title 50—WILDLIFE AND FISHERIES

Chapter I—Bureau of Sport Fisheries and Wildlife, Fish and Wildlife Service, Department of the Interior

SUBCHAPTER C—THE NATIONAL WILDLIFE REFUGE SYSTEM

PART 33—SPORT FISHING

Arapaho National Wildlife Refuge, Colo.

Pursuant to the authority vested in the Secretary of the Interior by the Migratory Bird Conservation Act of February 18, 1929, as amended (45 Stat. 1222; 16 U.S.C. 715), and the National Wildlife Refuge System Administration Act of 1966 (80 Stat. 927 as amended; 16 U.S.C. 668dd), 50 CFR 33 is herewith amended by the addition of Arapaho National Wildlife Refuge, Colo., to the list of areas open to sport fishing as legislatively permitted.

Notice and public procedure on this amendment are deemed contrary to the public interest because of the proximity of the sport fishing season in the State of Colorado. Since this amendment benefits the public by relieving existing sport fishing restrictions on the Arapaho National Wildlife Refuge, it shall become effective upon publication in the FEDERAL REGISTER.

1. Section 33.4 is amended by the following addition:

§ 33.4 **List of open areas; sport fishing.**

* * * * *

COLORADO

Arapaho National Wildlife Refuge.

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ABRAM V. TUNISON,
Acting Director, Bureau of Sport Fisheries and Wildlife.

JULY 7, 1970.

[F.R. Doc. 70-8904; Filed, July 13, 1970; 8:45 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 18828; FCC 70-715]

PART 31—UNIFORM SYSTEM OF ACCOUNTS FOR CLASS A AND CLASS B TELEPHONE COMPANIES

PART 33—UNIFORM SYSTEM OF ACCOUNTS FOR CLASS C TELEPHONE COMPANIES

Deferral Accounting for Income Tax Differentials

Report and order. In the matter of amendment of Part 31, Uniform System of Accounts for Class A and Class B Telephone Companies, and Part 33, Uniform System of Accounts for Class C Telephone Companies, of the Commission's rules to provide for deferral accounting for income tax differentials occasioned by the use of accelerated depreciation for income tax purposes; also to make related changes in Annual Report Form M and to provide for interim reporting on Monthly Report Form 901.

1. The Commission adopted a notice of proposed rule making in the above entitled matter on April 1, 1970, which was published in the FEDERAL REGISTER on April 8, 1970 (35 F.R. 5706), in accordance with section 4(a) of the Administrative Procedure Act. The notice presented for comment on or before May 8, 1970, and for reply comment on or before May 18, 1970, a proposal to amend the Commission's accounting rules to permit normalization accounting